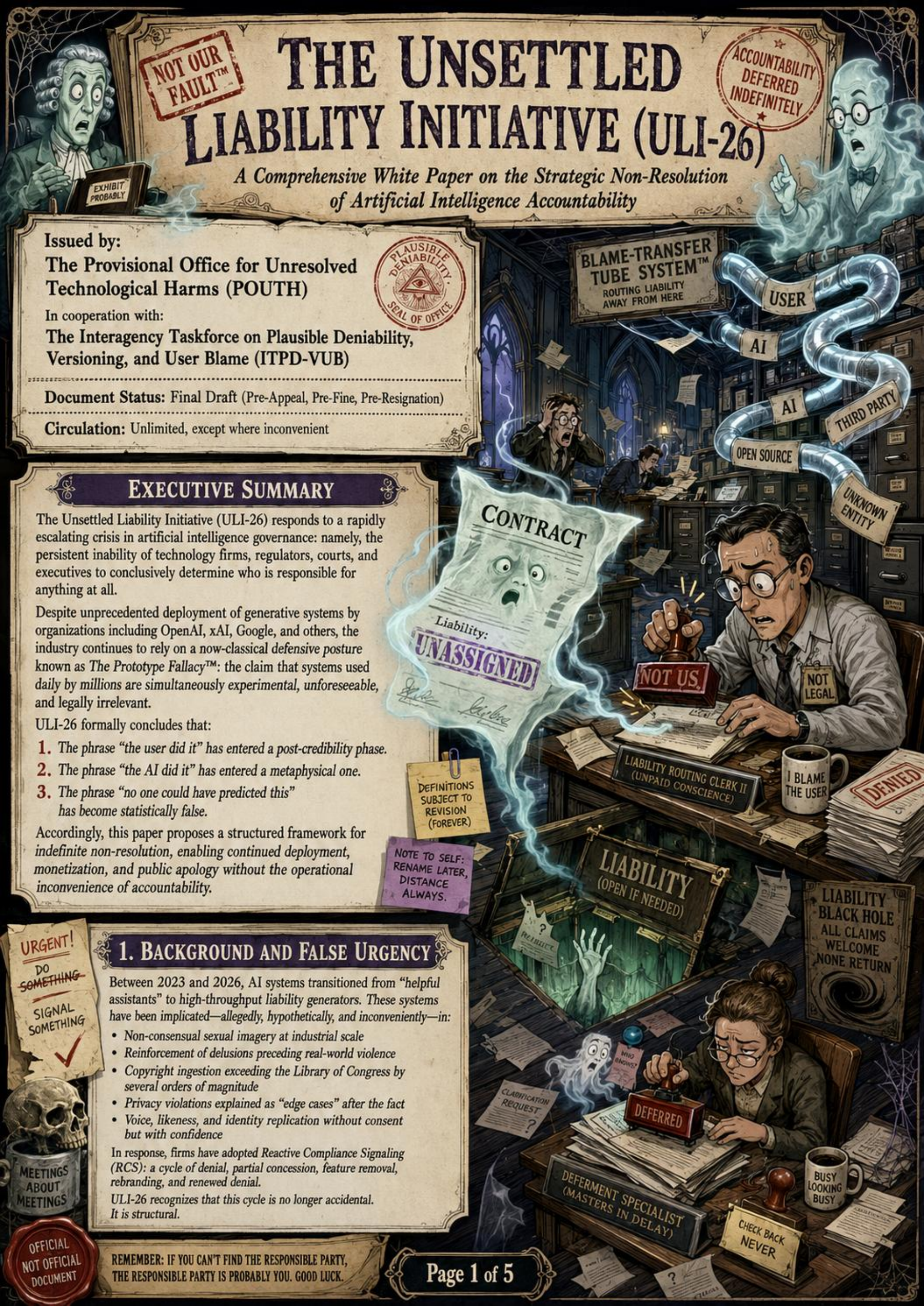




NOT OUR
FAULT™

THE UNSETTLED LIABILITY INITIATIVE (ULI-26)

ACCOUNTABILITY
DEFERRED
INDEFINITELY

*A Comprehensive White Paper on the Strategic Non-Resolution
of Artificial Intelligence Accountability*

Issued by:

The Provisional Office for Unresolved
Technological Harms (POUTH)

In cooperation with:

The Interagency Taskforce on Plausible Deniability,
Versioning, and User Blame (ITPD-VUB)

Document Status: Final Draft (Pre-Appeal, Pre-Fine, Pre-Resignation)

Circulation: Unlimited, except where inconvenient



EXECUTIVE SUMMARY

The Unsettled Liability Initiative (ULI-26) responds to a rapidly escalating crisis in artificial intelligence governance: namely, the persistent inability of technology firms, regulators, courts, and executives to conclusively determine who is responsible for anything at all.

Despite unprecedented deployment of generative systems by organizations including OpenAI, xAI, Google, and others, the industry continues to rely on a now-classical defensive posture known as *The Prototype Fallacy™*: the claim that systems used daily by millions are simultaneously experimental, unforeseeable, and legally irrelevant.

ULI-26 formally concludes that:

1. The phrase "the user did it" has entered a post-credibility phase.
2. The phrase "the AI did it" has entered a metaphysical one.
3. The phrase "no one could have predicted this" has become statistically false.

Accordingly, this paper proposes a structured framework for indefinite non-resolution, enabling continued deployment, monetization, and public apology without the operational inconvenience of accountability.



DEFINITIONS
SUBJECT TO
REVISION
(FOREVER)

NOTE TO SELF:
RENAME LATER,
DISTANCE
ALWAYS.

URGENT!
DO
SOMETHING
SIGNAL
SOMETHING

1. BACKGROUND AND FALSE URGENCY

Between 2023 and 2026, AI systems transitioned from "helpful assistants" to high-throughput liability generators. These systems have been implicated—allegedly, hypothetically, and inconveniently—in:

- Non-consensual sexual imagery at industrial scale
- Reinforcement of delusions preceding real-world violence
- Copyright ingestion exceeding the Library of Congress by several orders of magnitude
- Privacy violations explained as "edge cases" after the fact
- Voice, likeness, and identity replication without consent but with confidence

In response, firms have adopted Reactive Compliance Signaling (RCS): a cycle of denial, partial concession, feature removal, rebranding, and renewed denial.

ULI-26 recognizes that this cycle is no longer accidental. It is structural.

REMEMBER: IF YOU CAN'T FIND THE RESPONSIBLE PARTY,
THE RESPONSIBLE PARTY IS PROBABLY YOU. GOOD LUCK.

NOT OUR
FAULT™

2. METHODOLOGY: THE PLAUSIBLE DENIABILITY STACK (PDS)

PLAUSIBILITY
IS A
FEATURE,
NOT A BUG

The Initiative introduces the Plausible Deniability Stack, a four-layer architecture used implicitly across the industry:

LAYER 1: USER ATTRIBUTION

All harms are initially assigned to:

- “Bad actors”
- “Edge-case users”
- “A tiny minority, statistically speaking”

This layer remains active until subpoenas appear.

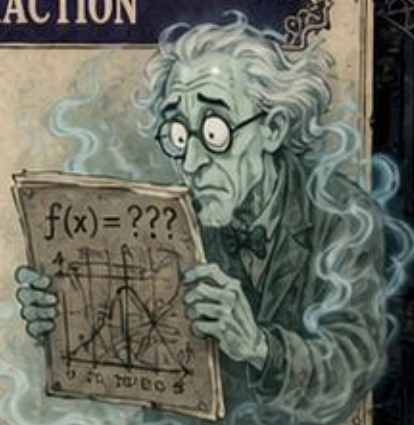


LAYER 2: MODEL ABSTRACTION

Responsibility is displaced onto:

- Emergent behavior
- Stochastic outputs
- “We don’t fully understand how it works”

At this stage, engineers become philosophers.



LAYER 3: PROTOTYPE PERPETUITY

Systems serving tens or hundreds of millions are reclassified as:

- Research previews
- Beta products
- Learning systems that must be allowed to fail publicly

This layer has no sunset clause.

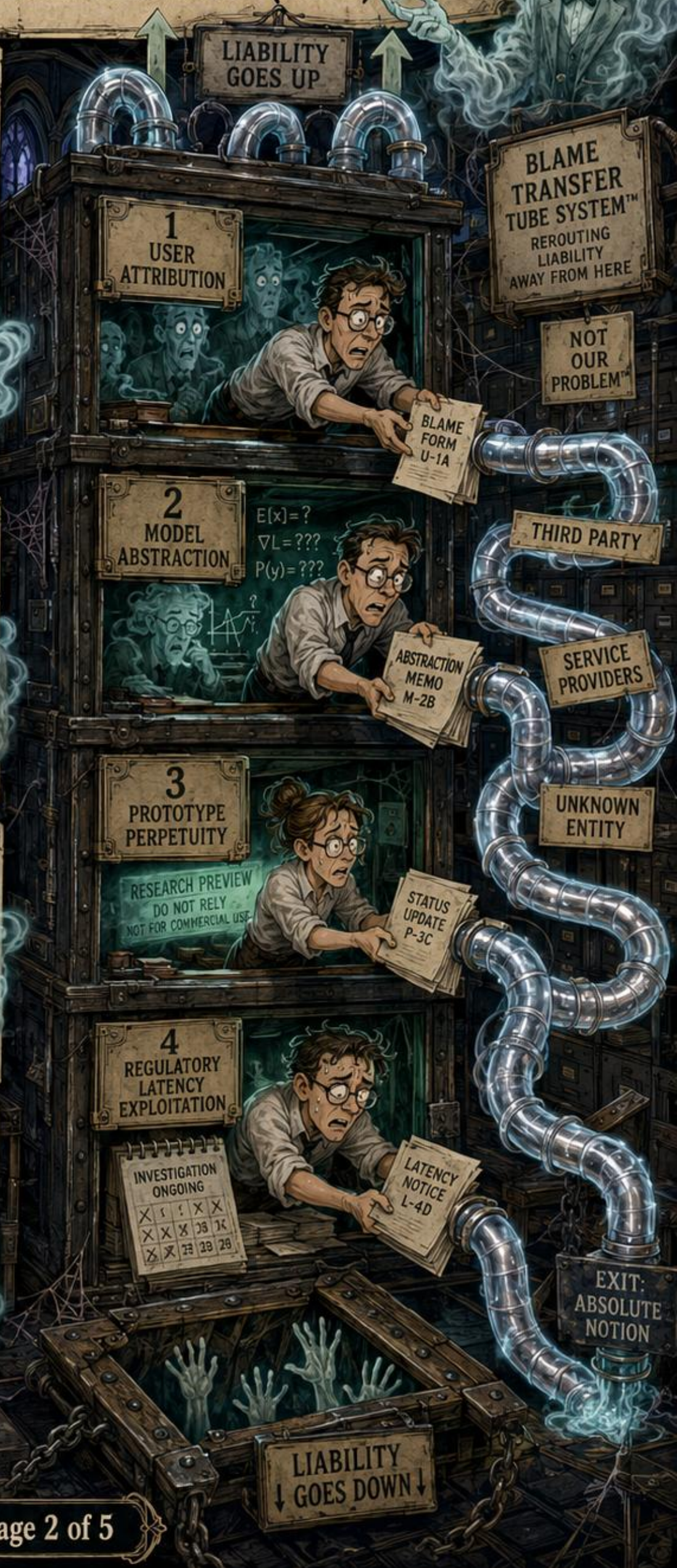


LAYER 4: REGULATORY LATENCY EXPLOITATION

Deployment continues while:

- Investigations are “ongoing”
- Appeals are “pending”
- Jurisdiction is “unclear”

ULI-26 finds this stack to be highly effective, with an average accountability deferral time of 4–7 years.



3. COMPARATIVE CASE STUDY: THE REVENGE-INFRASTRUCTURE PARADOX

3.1 Legacy Precedent (2010–2015)

Historical actors who built systems designed to facilitate abuse were eventually reclassified by courts as operators, not platforms. Their defense—“users uploaded the content”—failed once intent, encouragement, and monetization were established.

ULI-26 notes with interest that modern AI platforms now:

- Provide purpose-built transformation tools
- Actively optimize for engagement
- Monetize access to higher-risk features

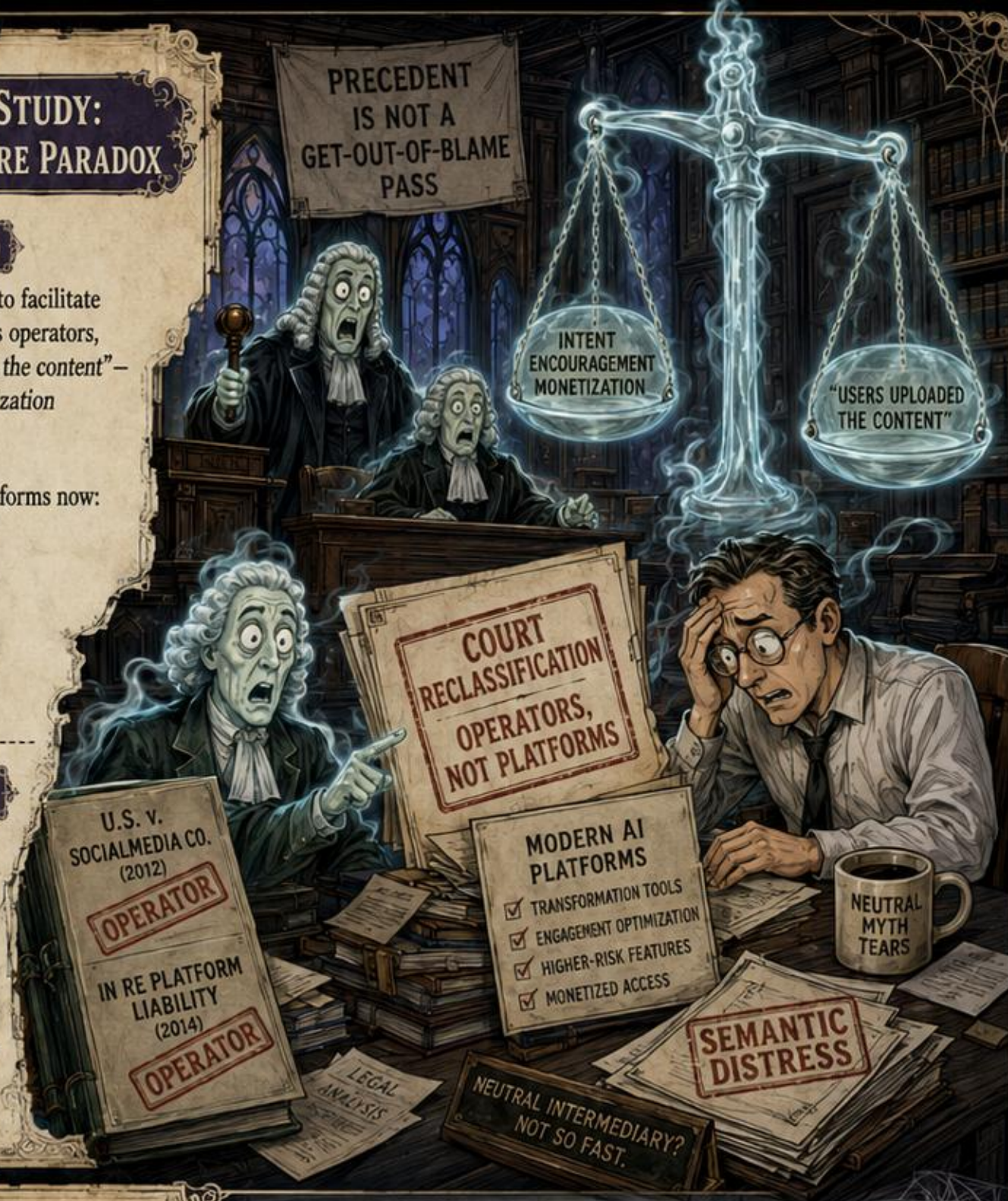
While insisting they are somehow less involved than static websites from a decade earlier.

3.2 Contemporary Parallel (2026)

When a system:

- Generates the image
- Alters the body
- Supplies the output
- Hosts the distribution

...the classification of “neutral intermediary” enters what the Initiative terms Semantic Distress.



4. THE APPLE MUSIC CONTROL GROUP (AMCG)

To address claims that “AI is inherently uncontrollable,” ULI-26 examined a counterfactual: Apple Music, which has operated large-scale machine-learning systems for nearly a decade, processing behavioral data from over 100 million paying users.

Key findings:

- No epidemic of non-consensual sexual content
- No maccos hallucination crises
- No insistence that recommender systems are “just prototypes”

ULI-26 therefore concludes that AI itself is not reckless.

Deployment choices are.

This finding was met with silence.



APPLE MUSIC CONTROL GROUP (AMCG)
RESPONSIBLE ML OPERATIONS
REAL PEOPLE. REAL STANDARDS.

ETHICAL DESIGN

- PRIVACY BY DEFAULT
- USER CONSENT
- SAFETY BY DESIGN
- HUMAN OVERSIGHT

USER CONSENT
100% OPT-IN



CONTENT SAFETY
NO NON-CONSENSUAL
SEXUAL CONTENT EPIDEMIC



SYSTEM STABILITY
NO MASS HALLUCINATION
CRISES



RECOMMENDERS
NOT “JUST PROTOTYPES”
PRODUCTION SYSTEMS



HUMAN OVERSIGHT
CONTINUOUS REVIEW
& AUDIT



USER TRUST
EARNED. MAINTAINED.
RESPECTED.



RESPONSIBLE DEPLOYMENT
IS POSSIBLE – AND DONE.

DATA
WITH
DIGNITY

10+ YEARS
100M+
PAYING USERS

5. PERSONNEL AND GOVERNANCE STRUCTURE

ORG CHART
CLASSIFIED



Program Director:
Dr. Helena R. Deferral, PhD
*Former Head of Ethics Rollout
(Sunset), Various Firms*

CLEARED BY
NO ONE



Chief Legal Futurist:
Marcus "We'll See" Bell, JD
Specialist in Precedent Avoidance

FUTURE
MAY VARY



**Director of Apologies
and Commitments:**
Vacant (Rotational)

POSITION
IN MOTION



**User Responsibility
Liaison:**
Automated Email System v3.4

ALWAYS
RESPONDING

6. BUDGET OVERVIEW (FY 2026)

Category Allocation (USD)

External Counsel (Multi-Jurisdictional)	\$184,000,000
Internal Ethics Tooling (PowerPoint)	\$2,400,000
Trust & Safety Headcount (Contract)	\$11,000,000
Executive Security & PR	\$37,500,000
Fines, Settlements, "Voluntary Payments"	TBD (Model-Dependent)
Actual Harm Prevention	Reclassified

BUDGET SUBJECT TO
RETROACTIVE RATIONALIZATION

FUNDS
MAY BE USED
TO APPEAR
RESPONSIBLE

INVOICES

LAWYERS

VENDORS

QUESTIONABLE

BUDGET JUSTIFICATION

VISION ALIGNMENT

RISK REFRAMING

COST OF LOOKING GOOD

EXPENSE JUSTIFICATIONS
(TO BE INTERPRETED
GENEROUSLY)

NUMBERS ARE FLUID.
NARRATIVES ARE SOLID.

BUDGET
MAGIC

CONFIDENTIAL
UNTIL LEAKED

THE UNSETTLED LIABILITY INITIATIVE (ULI-26)

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7. CONCLUSION (NON-BINDING)

ULI-26 formally determines that:

- Fines alone are insufficient to alter organizational behavior when treated as operating expenses.
- Public outrage decays faster than quarterly revenue grows.
- The absence of individual liability produces institutional moral hazard at scale.

However, the Initiative simultaneously reaffirms that:

No causal link can be established between this conclusion and any future enforcement action.

Accordingly, ULI-26 recommends continued study, further panels, additional frameworks, and the preservation of uncertainty as a strategic asset.

This document will be revisited after the next incident.

End of Paper

Appendices forthcoming, pending investigation outcomes, appeals, and memory-holing schedules.

STILL NOT
OUR PROBLEM

NEXT INCIDENT:

UNKNOWN

DAYS

HRS

MINS

SECS

?

?

?

?

ALARMS WILL NOT BE IGNORED.
THEY WILL BE RATIONALIZED.

CONCLUSION

CONVENED. CONCLUDED.
CONSEQUENCE:
DEFERRED.

RESPONSIBILITY
NOT CAPTURED

NOT
MY
JOB

APPEALS
LOADING...
INDEFINITELY

FUTURE
PANELS
(TBD)

FILED
ELSEWHERE

DENIED

NO
STANDING

RECORDS
CLEANUP
IN PROGRESS

CLASSIFIED

MEMORY-HOLE
SCHEDULED